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File No.: EXP202405754

RESOLUTION No.: R/01082/2024

Considering the complaint filed on March 19, 2024, before this Agency by A.A.A., against B.B.B., for not having duly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of access against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), as the responsible party of CLÍNICA DENTAL MEGADENT, and their request, as stated by the complainant, did not receive the legally established response. The complainant points out that they initially addressed the respondent exercising their right of access regarding their medical history. They claim that this request was not answered.

The complainant provides various documents related to the complaint filed before this Agency and regarding the exercise of the right exercised. Specifically, they attach proof of having contacted the respondent exercising their right of access. In their writing, they requested:

- A copy of their complete medical history, paginated and with an index, which includes the care and all dental services provided. They indicated that the medical history "must contain at least the anamnesis, the diagnosis, the dental orders, the informed consents, as well as the prosthetic models and the final discharge report, if any."
- A copy of all routine and complementary tests that have been performed (radiological tests: intraoral radiographs, orthopantomograms, dental CT scans, etc.), requesting all tests performed.
- Identification of the responsible dentists for each and every treatment, including their first name, last name, and registration number.

This writing was sent by postal mail addressed to the dental clinic's address; however, it could not be delivered by the Postal Service. According to the certificate issued by this Service, a delivery attempt was made on 02/12/2024, at 11:01 hours, with the result "Absent," and subsequently, the shipment was returned to "origin due to surplus (not collected at the office) on 02/28/2024."

For this reason, the complainant requests in their complaint that this Agency forward their request for a copy of the medical history to the respondent.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed before the AEPD, consisting of transferring them to the Data Protection Delegates designated by the responsible parties or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, on April 15, 2024, the complaint was forwarded to the respondent for them to analyze it and respond to the complainant and this Agency within one month. The notification was not delivered as it was marked "Absent in delivery."

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims to be satisfied. Consequently, on June 19, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with the admission agreement, will be six months.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present any allegations they deemed appropriate. This entity made the following allegations:

"FIRST.- CLINICA DENTAL MEGADENT has no record of the exercise of the right of access by Ms. A.A.A., as CLINICA DENTAL MEGADENT immediately attends to such requests, since it is a common practice for patients to request a copy of their medical history, and CLINICA DENTAL MEGADENT provides it immediately, in compliance with Article 15 of the GDPR.

SECOND.- Having only knowledge through FILE No.: EXP202405754, that the patient is exercising the right of access, we provide it as annex document number 2, along with this writing of allegations.

THIRD.- We are entirely at the disposal of the SPANISH AGENCY FOR DATA PROTECTION for any clarifications they deem appropriate, and through this WRITING OF ALLEGATIONS we submit our allegations, providing the patient's medical history, as CLINICA DENTAL MEGADENT had no record that the right of access had been exercised by the interested party prior to this notification by the SPANISH AGENCY FOR DATA PROTECTION."

The medical history provided consists of a list of medical actions, prepared in handwritten form as a chronological record of actions, difficult to read, with a very brief description of each (usually one line per action) and accompanied by summaries of payments for the services received. As observed, the first entry would be from the 10th of...

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3/9

November 2011 (presumably the date of opening of the case) and the last of March 2022 (the full date is not visible and the document appears to be cut off).

FOURTH: After examining the allegations presented by the respondent, they are subject to transfer to the claimant, so that, within a period of fifteen working days, they may formulate any allegations they deem appropriate:

In their response dated August 28, 2024, the claimant expresses their disagreement with the documentation received. They allege the following:

- Many handwritten notes are illegible or very difficult to read
- The margins of the document appear cut off, and the actions are not always ordered chronologically
- The claimant recounts various actions or treatments received (implants, placement of prostheses, among others), asserting that, in the response from the respondent, documents such as the following have not been attached:

- o Information related to the medical treatment
- o Tests performed
- o Estimates prepared and invoices paid
- o Materials used and warranties they had
- o Registered professionals who performed the actions
- o Dates on which they were performed, up to the last day they attended that clinic

FIFTH. A new opportunity for allegations was granted to the respondent by this AEPD, in order for them to comment on the claims of the claimant. On October 22, 2024, the response was received, in which it is limited to reiterating that it had not received the access request previously, and in which it claims to have already sent the patient's medical history. This is aside from a generic mention of an ongoing judicial procedure, in which the aforementioned history would also have been provided.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among controllers and processors regarding the obligations that pertain to them, as well as to address the complaints filed by a data subject and investigate, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was transferred to the respondent for analysis, to respond to this Agency within one month, and to prove that they had provided the claimant with the due response.

The result of this transfer did not allow for understanding that the claims of the claimant were satisfied. Consequently, on July 8, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. Once that period has elapsed, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to...

5/9

attend to the requests for the exercise of the rights of the data subject under this Regulation.

III

Rights of individuals regarding the protection of personal data

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects

provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during the period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

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C/ Jorge Juan, 6

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6/9

considering the request attended to (although the interested party may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation of whether or not personal data concerning them is being processed and, in that case, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others; that is, the right of access shall be granted in such a way that it does not affect the data of third parties.

The right of access in relation to medical records is specifically regulated in Article 18 of Law 41/2002, of November 14, which is the basic regulatory law on Patient Autonomy and Rights and Obligations in the Field of Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

"1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical record and to obtain a copy of the data contained therein. Health centers shall regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical record may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical record cannot be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access the reservation of their subjective notes.

4. Health centers and individual practitioners shall only facilitate access to the medical records of

deceased patients to persons linked to them, for family or factual reasons, unless the deceased expressly prohibited it and this is accredited. In any case, access by a third party to the medical record motivated by a risk to their health shall be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, shall not be provided.”

In this regard, it is important to highlight Article 15 of the LPA, which outlines the minimum content of the medical record:

“1. The medical record shall incorporate the information deemed essential for the truthful and updated knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most appropriate technical support, of the information obtained in all their care processes, carried out by the health service both in the field of primary care and specialized care.

2. The main purpose of the medical record shall be to facilitate healthcare, documenting all those data that, in the medical opinion, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical record shall be as follows:

a) The documentation relating to the clinical-statistical sheet.

b) The admission authorization.

c) The emergency report.

d) The anamnesis and physical examination.

e) The evolution.

f) The medical orders.

g) The consultation sheet.

h) The reports of complementary examinations.

i) The informed consent.

j) The anesthesia report.

k) The operating room report or delivery record.

l) The pathological anatomy report.

m) The evolution and planning of nursing care.

n) The therapeutic application of nursing.

ñ) The chart of vital signs.

o) The clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) shall only be required in the completion of the medical record when it concerns hospitalization processes or as provided.

3. The completion of the medical record, in aspects related to direct patient care, shall be the responsibility of the professionals involved in it.

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8/9

4. The medical record shall be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the healthcare professionals of the data of a specific patient in each healthcare process” (the underlining is from the Spanish Agency for Data Protection). Regarding the preservation of the medical record, Article 17 of the LPA, in its points 1 and 5, provides that:

“1. Healthcare centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original format, for the appropriate assistance to the patient for the time deemed necessary for each case and, at a minimum, five years from the date of discharge from each healthcare process...”

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the healthcare documentation they generate.”

V

Conclusion

In the case analyzed here, the claiming party attempted to exercise their right of access to the medical record before the responding party through a letter sent to them by postal mail. This letter could not be delivered by the Postal Service to the responding party as they were found to be "Absent" at the time of delivery. However, the responding party was notified about the shipment in question, which remained at the post office for a period of two weeks without the responding party coming to collect it, which is why it was returned to the sender.

For this reason, the responding party has claimed during the processing of the procedure that they did not receive the request for access to the medical record from the claiming party. However, it is documented that the request was sent to the responding party, that the shipment was addressed to the dental clinic's address, and that delivery did not occur because the responding party did not appear at the post office to collect it.

In any case, the responding party, during the processing of this procedure, has acknowledged the right exercised by the claiming party and has decided to address that right by providing a response.

However, in the response provided to the claiming party, which has been submitted to the proceedings by the responding party, only a document containing handwritten notes, difficult to read, apparently arranged chronologically, has been supplied. No type of reports or diagnostic evidence or their results were accompanied. Furthermore, the document itself appears to be incomplete. This does not allow for the understanding that the right of access has been fulfilled under the conditions established both in Article 15 of the GDPR and in Article 15 of the LAP.

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9/9

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the complaint filed by A.A.A. and to urge B.B.B. with NIF ***NIF.1, to send to the claiming party, within ten working days from the date this resolution becomes final and enforceable, a certification that addresses the requested right of access or a reasoned denial indicating the reasons why the request cannot be fulfilled, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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